

INNOVATION SANDBOX CHALLENGE: EMPOWERING INDIGENOUS INNOVATION AND LEADERSHIP PARTICIPATION AND CONTRIBUTION AGREEMENT

RECITALS:

- I. The Ontario Energy Board (the “**OEB**”) has established the Innovation Sandbox Challenge: Empowering Indigenous Innovation and Leadership (the “**Innovation Sandbox Challenge**”) to distribute one-time financial assistance for eligible projects.
- II. [Name of Proponent] (the “**Recipient**”) has proposed a project that [description of project] (the “**Project**”).
- III. The Recipient has been selected by the OEB to receive financial assistance (the “**Contribution**”) under the Innovation Sandbox Challenge for carrying out the Project, subject to the terms and conditions set out in this agreement (the “**Agreement**”) and the Schedules to this Agreement.
- IV. The Contribution is funded by the Government of Canada and is subject additional terms and conditions as disclosed in an agreement between the OEB and the Government of Canada (the “**GoC Agreement**”). Such terms are reflected in this Agreement to the extent required by the GoC Agreement.

IN CONSIDERATION of the covenants of the Recipient and the OEB (each a “**Party**” and together, the “**Parties**”) under this Agreement, the Parties covenant and agree with each other as follows:

1. **Definitions:** Capitalized terms are defined in the section opposite the term.

DEFINED TERM	SECTION
Agreement	Recital III
AODA	3(c)
Confidential Information	10(a)
Conflict of Interest	23(a)
Contribution	Recital III
Contribution Payment Amount	4(a)

Eligible Expenses	4(a)
Government of Canada	Recital IV
GoC Agreement	Recital IV
HST	4(c)
Innovation Sandbox Challenge	Recital I
Intellectual Property	12(a)
Milestone	4(a)
Milestone Report	9(a)
OEB	Recital I
Party	Preamble
Project	Recital II
Proposal	Schedule C
Recipient	Recital II
Recipient's Marks	12(e)
Term	7

2. Schedules: The following schedules are attached to and form a part of this Agreement:

Schedule A	Specific Project Requirements, etc.
Schedule B	Invoices and Eligible Expenses
Schedule C	Project Proposal

And such additional schedules in respect of which the OEB from time to time may notify the Recipient.

3. Contribution Terms:

a. The Recipient shall:

- i. carry out the Project substantially as described in the Project Proposal, and meet the specific requirements set forth in Schedule A;
- ii. obtain financial commitments from parties other than the OEB including, but not limited to, the commitments listed in Schedule A;
- iii. use the Contribution solely for the purposes of the Project; and
- iv. not make any material change to the Project without the prior written consent of the OEB.

- b. The OEB shall provide a Contribution of up to a maximum of \$[•] (including all reimbursements, expenses and any other payments) plus applicable sales taxes to the Project.
- c. The Recipient shall comply with all OEB policies, the *Accessibility for Ontarians with Disabilities Act, 2005* as may be amended (the “**AODA**”), and all other laws that are applicable to the performance of the Recipient’s obligations hereunder.
- d. When performing the obligations hereunder, the Recipient will ensure the Project deliverables, including all communications, documentation, information, web content, web pages, and websites that are distributed or made publicly available by the Recipient or are intended to be distributed or made publicly available by the OEB, are in compliance with AODA requirements or are provided in a format otherwise specified by the OEB in writing.

4. Contribution Payment Terms: The OEB shall pay the Contribution as follows:

- a. Following completion of each project milestone specified in Schedule A (each a “**Milestone**”) and provided that (i) the Recipient is not in breach of any of its obligations under this Agreement, (ii) the Recipient has completed and delivered a Milestone Report (as defined in section 9(a) of this Agreement), and (iii) the OEB has provided written confirmation that it accepts the Milestone Report as complete, the Recipient shall be entitled to submit an invoice for reimbursement of eligible expenses as specified in Schedule B (the “**Eligible Expenses**”) up to the contribution payment amount (a “**Contribution Payment Amount**”) corresponding to that Milestone, as specified in Schedule A.
- b. All invoices must reference the applicable Milestone and Milestone Report and may include only Eligible Expenses as defined in Schedule B to this Agreement. The OEB may accept or refuse an invoice, acting reasonably. Invoices that are accepted by the OEB will be funded within thirty (30) days after the day on which such invoice is received.
- c. Harmonized Sales Tax (“**HST**”) and all other applicable taxes will be shown separately on all invoices. The Recipient shall deduct all recoverable HST from expenses and other costs of the Recipient before calculating HST on amounts to be invoiced to the OEB. The Recipient shall provide the OEB at the time of issuing the invoice with all supporting documentation required for the OEB to claim an HST rebate incurred by it in connection with this Agreement. The OEB has the right to request further details (including copies of previously submitted invoices or any documentation required in support thereof) in order to establish its rebate in respect of any HST incurred by the OEB in connection with this Agreement. The Recipient shall co-operate to the

reasonable extent necessary in providing such documentation to the OEB on a timely basis.

- d. Where for any reason the OEB determines that a Contribution Payment Amount disbursed under this Agreement exceeds the amount to which the Recipient is entitled to under this Agreement, the Recipient must repay to the OEB no later than thirty (30) days from the date of the OEB providing notice the amount of the overpayment. If the amount is not repaid by its due date, interest shall accrue at the Bank of Canada interest rate for the period beginning on the due date and ending on the day before the day on which repayment to the OEB is received.
- e. If a Project under this Agreement becomes a “project” within the meaning of the *Impact Assessment Act*, all of the OEB’s obligations to the Recipient (including the payment of Contribution Payment Amounts) will be suspended until:
 - (i) a determination indicating that the carrying out of the Project is not likely to cause significant adverse environmental effects by the Minister or another authority referred in the *Impact Assessment Act*; or
 - (ii) if the carrying out of the Project is likely to cause significant adverse environmental effects, a decision of the Governor in Council indicates that those effects are justified in the circumstances.
- f. If a Project under this Agreement triggers a legal duty to consult with Indigenous groups affected by the Project, the Recipient agrees that all of the OEB’s obligations under this Agreement will be suspended from the moment that the OEB notifies the Recipient that a legal duty to consult has arisen, until the OEB is satisfied that the duty to consult, and where appropriate, the duty to accommodate, has been met.
- g. The payment of monies by the OEB to the Recipient under this Agreement is subject to the continued funding of the Innovation Sandbox Challenge by the Government of Canada. In the event that the funding amounts from the Government of Canada are adjusted or reduced, the OEB will adjust or reduce the Contribution (and any constitutive Contribution Payment Amounts) upon written notice to the Recipient. In such event, the Parties agree to amend this Agreement and its Schedules to reflect such changes to the funding amounts.

5. No Duplicate Funding: Except as expressly permitted in Schedule A, the Recipient shall not invoice, apply for or accept duplicate funding for the Project or any part of the Project.

- 6. No Subcontracting:** If the Recipient uses all or any part of the Contribution to fund the purchase of work, non-consulting services or goods from third parties (other than hiring employees) in an amount greater than \$25,000.00, the Recipient shall use a competitive bidding process to purchase such work, services or goods, and shall obtain the written approval of the OEB before awarding the subcontract. The Recipient must use a competitive bidding process for the purchase of consulting services irrespective of the value of the sub-contract and obtain written approval of the OEB before awarding a subcontract for consulting services. The Recipient will not hire or purchase work, services or goods from any third party that has a conflict of interest with the Recipient or the Project. Third parties that are identified as members of the Project team in the Project Proposal, and whose costs are accurately reflected in the Project Proposal budget, will not be subject to this section.
- 7. Term and Termination:** This Agreement will continue until [•] (the “Term”), unless earlier terminated under any one of the following circumstances:
- a. OEB may terminate this Agreement immediately at any time during the Term if funding for the Innovation Sandbox Challenge is suspended, revoked or terminated by the Government of Canada. In such instance, the OEB shall make payment to the Recipient only of amounts then due but as yet unpaid. The Recipient agrees that such amount shall be its sole and exclusive payment, and it shall not be entitled to any other amounts whether as damages, costs, expenses or otherwise.
 - b. For greater certainty, the OEB may terminate this Agreement immediately in the event that the GoC Agreement is suspended, materially amended, or otherwise terminated. In such instance, the Recipient shall only be entitled to payment for Eligible Expenses incurred and approved up to the date of termination.
 - c. This Agreement may be terminated at any time by either Party upon 90 days prior written notice. In such instance the OEB shall make payment to the Recipient of amounts due but unpaid on the termination date. The Recipient agrees that such amount shall be its sole and exclusive payment, and it shall not be entitled to any other amounts whether as damages, costs, expenses or otherwise.
 - d. This Agreement may be terminated by the OEB if the Recipient fails to deliver a Milestone Report acceptable to the OEB within 30 days of receipt by the Recipient of the OEB’s comments thereon, without obligation or recourse by either Party. In such instance, the Recipient shall not be entitled to any further Contribution Payment Amounts, or other payments whether as damages, expenses, costs or otherwise.
 - e. This Agreement may be terminated by either Party if:

- (i) the other Party materially fails to perform a covenant or obligation and fails to remedy such default within 15 days after receiving notice thereof, or
- (ii) a statement, representation or warranty contained in this Agreement, the Recipient's Project Proposal materials for selection and funding under the Innovation Sandbox Challenge or any other information provided to the OEB is untrue, and
- (iii) if the defaulting Party is the Recipient, the Recipient shall immediately repay all or any part of the Contribution advanced to the Recipient after:
 - 1. such breach in the case of paragraph (i), or
 - 2. the date on which the statement, representation or warranty was made in the case of paragraph (ii).

8. Representations and Warranties: The Recipient represents and warrants to the OEB that:

- a. the Recipient is duly organized and validly existing under the laws of the jurisdiction of its organization or incorporation and has all necessary power and authority to enter into this Agreement and to perform its obligations hereunder;
- b. this Agreement is duly authorized, validly executed, will constitute a binding obligation of the Recipient in accordance with its terms, and will not result in a breach or violation of, constitute a default under, or cause a termination, cancellation or acceleration of any other material obligation of the Recipient;
- c. the Recipient has the necessary experience, skill and personnel to perform its obligations hereunder;
- d. there are no bankruptcy, insolvency, reorganization, receivership, seizure, realization, arrangement or other similar proceedings pending against or being contemplated against the Recipient; and
- e. all information provided by the Recipient to the OEB in the course of applying to the Innovation Sandbox Challenge, including the Project Proposal, is not misleading in any material respect, and the Recipient has not failed to disclose any information that would make the information disclosed misleading.

9. Project Reporting and Meetings:

- a. The Recipient shall deliver a report (a "**Milestone Report**") in the form

prescribed, from time to time, to the OEB following the completion of each Milestone. Each Milestone Report shall include:

- (i) A detailed description of tasks completed to date;
 - (ii) Outputs and deliverables achieved;
 - (iii) Key Performance Indicators (KPIs) relevant to the Project;
 - (iv) Updated budget and timeline status;
 - (v) Any issues encountered and mitigation strategies.
- b. If the Recipient fails to complete a Milestone by its expected completion date, the Recipient shall, if requested by the OEB, prepare and deliver, within 30 days of the request, a report (i) explaining the reason for any failure to complete a Milestone by the expected completion date, (ii) detailing any activities being taken to address the issues creating the delay to completion, and (iii) providing a revised expected completion date.
- c. The Recipient shall deliver periodic reports with respect to the Project upon the reasonable request of the OEB, including reports as to the status or progress of the Project, barriers and impediments to the advancement of the Project, outcomes of the Project and lessons learned from the implementation of the Project.
- d. The Recipient shall deliver any reports as and when specified in Schedule A.
- e. All Milestone Reports and any other report delivered under this Agreement shall be free of restrictions on use or confidentiality and subject to subsection 12(d).
- f. The Recipient shall submit a summary of the Project and its results, suitable for publication by the OEB and the Government of Canada.

10. Confidentiality:

- a. “**Confidential Information**” means any information in any format (including discussions) identified as confidential by the disclosing party, including, without limitation, information concerning past, present or future customers, suppliers, technology, operations, processes, know-how or business; provided that, information which:
- i. is authorized in writing for release by the disclosing party;
 - ii. is required to be disclosed by law or order of a court, government tribunal, government agency, the Government of Ontario (or any of

its Ministries or representatives) or the Government of Canada (or any of its Ministries or representatives);

iii. is or becomes part of public domain without material breach of this Agreement by the party seeking to rely on this exclusion; or

iv. was independently developed by the receiving party without relying on any Confidential Information provided by the disclosing party,

will not be considered Confidential Information.

- b. A party may disclose Confidential Information to the other party to facilitate work under this Agreement. The receiving party shall safeguard and keep such information strictly confidential in accordance with its own standards for keeping confidential information, and at a minimum shall take such steps as a reasonably prudent commercial enterprise would take to protect such information from disclosure.
- c. The receiving party will not use the disclosing party's Confidential Information for any purpose except for directly facilitating work under this Agreement.

11. Privacy: The Recipient acknowledges that the *Freedom of Information and Protection of Privacy Act* applies to the OEB and that information provided to the OEB may be subject to disclosure under that Act.

12. Intellectual Property:

- a. **"Intellectual Property"** means any intellectual, industrial or other proprietary right of any type in any form protected or protectable under the laws of Canada, any foreign country, or any political subdivision of any country, including all trademarks, official marks, copyrights, applications and registrations therefor, confidential information, all programs, plans, procedures, art, drawings, designs, patterns, specifications, process, data, research, documents, reports, studies, papers, preliminary sketches, layouts, copy, commercial material, computer software, source codes, photography, films, video tapes, transcriptions, compilation of information, and all plans for advertising.
- b. Each Party shall retain all rights, title and interest in and to its Intellectual Property existing prior to this Agreement.
- c. Each Party shall retain all rights, title, and interest in and to its Intellectual Property arising in the course of the Project. Neither Party will acquire any right, title or interest in or to any Intellectual Property of the other Party pursuant to this Agreement except as provided expressly for herein.
- d. The Recipient hereby grants to the OEB a perpetual, irrevocable, fully paid-

up, royalty-free, transferrable, sublicensable, worldwide, non-exclusive right to use, modify, and subject to applicable privacy laws, disclose, reproduce, publish, copy and distribute a Milestone Report or any other report (including, among others, financial reports and reports related to the use and/or development of intellectual property in the project) delivered or requested pursuant to this Agreement in whole or in part for the OEB's non-commercial purposes, or for the purposes of the OEB's compliance with the GoC Agreement.

- e. The Recipient grants to the OEB a perpetual, irrevocable, fully paid-up, royalty-free, transferrable, sublicensable, worldwide, non-exclusive license to display the Recipient's marks, trademarks, official marks, logos and the like (the "**Recipient's Marks**") solely in connection with the exercise of the OEB's rights in section 13, or for the purposes of the OEB's compliance with the GoC Agreement. All such displays of the Recipient's Marks will comply with reasonable guidelines related thereto that may be provided by the Recipient to the OEB from time to time.
- f. The Recipient shall indemnify and hold harmless the OEB from all actions, claims, costs, losses, damages, expenses arising out of or relating to any actual or alleged infringements of third-party Intellectual Property rights by the Recipient.
- g. The Recipient represents and warrants that it has obtained all required third party consents, permissions and authorizations to carry out the Project and to do all things contemplated in this Agreement, including granting the OEB the use rights in section 13(c).

13. Publicity:

- a. The Recipient shall acknowledge the Contribution as being funded by the Government of Canada in all publicity or publications related to the Project verbally and in written documents by including the following text:

"This project was made possible through financial support provided by the Ontario Energy Board under the Innovation Sandbox Challenge: Empowering Indigenous Innovation and Leadership, which is funded by the Government of Canada."

- b. The Recipient shall obtain the OEB's approval of all public display and communications materials used by the Recipient in respect of the Project and will offer the OEB the opportunity to co-brand all such material with the OEB's name and mark and to include quotes or other material at the OEB's discretion. The Recipient shall provide the OEB with all public display and communications materials for approval and co-branding a minimum of three (3) weeks before the planned use of such materials.

- c. The OEB may make reference to the Project in any publicity or publication. The Recipient agrees that the OEB may use and make public the following information for publicity purposes:
 - (i) a description of the Project and the Recipient's Marks;
 - (ii) the Recipient's Marks;
 - (iii) project progress, lessons, and results;
 - (iv) Recipient contact information; and
 - (v) any Milestone Report or other report delivered under this Agreement, in part or a summary thereof.
- d. The Recipient shall not request that the OEB endorse any product or thing developed or produced as a result of, or in connection with, the Project.
- e. The OEB reserves the right to share the Recipient's proposed publicity and publication materials with the Government of Canada. The OEB and the Government of Canada are entitled to modify such materials to render them compliant with this Agreement and the GoC Agreement.

14. Limitation of Liability and Indemnification:

- a. The Recipient agrees that neither the OEB nor the Government of Canada shall be liable for any claims, losses, damages, injuries or expenses, loss of profits, consequential, special, incidental, indirect, collateral, exemplary or punitive damages arising as a result of entering into this Agreement, and the Recipient agrees to indemnify and save the OEB and the Government of Canada harmless therefrom.
- b. Without limiting any other terms or conditions of this Agreement, the Recipient agrees to defend, indemnify and hold harmless the OEB and the Government of Canada and their officers, directors, employees, agents and representatives respectively from and against any claim, suit, action or proceeding, threatened or actual, arising out of or relating to:
 - (i) the Recipient's breach of any provision of this Agreement; or
 - (ii) any injury to persons (including injuries resulting in death) or loss of or damage to property of others which may be or be alleged to be caused or suffered as a result of or in connection with the performance by the Recipient or any of its employees or subcontractors of all or any part of the Recipient's obligations under this Agreement or as a result of,

or in connection with, the Project.

15. Insurance:

- a. The Recipient will obtain and maintain throughout the Term, at its own cost and expense, all the necessary and appropriate insurance covering such risks and in such amount that a prudent person would maintain when carrying out the Project. Under no circumstances will the OEB be liable to the Recipient or any employee thereof for any failure by the Recipient to obtain any insurance necessary or desirable in relation to the subject matter of this Agreement.
- b. The Recipient shall, upon request of the OEB, provide proof of the insurance required by this Agreement in the form of valid certificates of insurance and confirm the required coverage exists, as at the time of the commencement of this Agreement, and, if applicable, renewal replacements on or before the expiry of any such insurance. Upon the request of the OEB, a copy of each insurance policy shall be made available to it.

16. Record Keeping and Access:

- a. The Recipient shall provide the OEB with reasonable access to any premises where the Project takes place to assess the Project's progress or any element thereof, subject to providing reasonable notice and complying with the Recipient's safety requirements for such access.
- b. During the Term of this Agreement and for a period of seven (7) years thereafter, the Recipient shall, at its own expense:
 - (i) keep proper and accurate books, accounts, and records of its revenue received and expenses incurred and paid in connection with the Project, and shall keep its invoices, receipts, and vouchers relating thereto;
 - (ii) keep records of its contracts, subcontracts, and all other information relating to the Project and;
 - (iii) keep proper and accurate records of all data, analyses, and other scientific or technical assessments and reports, and any and all information relating to the outputs and outcomes of the Project.
- c. During the period described in (b), the Recipient shall provide the OEB, its agents, the Government of Ontario, and the Government of Canada with reasonable access to such information for any reasonable purpose, including for audit examination, process audit or evaluation, measurement and verification of Project results and impacts.

- d. The OEB reserves the right to provide copies of any review, evaluation, or audit report (or any other related document arising therefrom) to the Government of Canada.
- e. If the OEB requests any information documentation, the Recipient shall deliver it within thirty (30) days. The Recipient shall comply with all laws and regulations applicable to it, including any privacy obligations.

17. Disposition of Assets: The Recipient shall seek the written consent of the OEB before the disposition of any asset that was acquired or used for the Project that is either disposed of or ceases to be used for the Project prior to the completion of the Project and for a period of three (3) years thereafter. For greater certainty, consent is required for assets that are intended to be sold, leased, or otherwise disposed of, where the cost of such asset was invoiced as an Eligible Expense under this Agreement to which the OEB (and by extension, the Government of Canada) has contributed.

18. Amendments: This Agreement may be amended or altered or modified only by a written document signed by both the Recipient and the OEB. A failure or delay in exercising any right, power or privilege in respect of the Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.

19. Assignment: The Recipient may not assign this Agreement in whole or in part without the prior written consent of the OEB.

20. Inconsistency: In the event of any inconsistency between the provisions of this Agreement and any schedule to this Agreement, this Agreement will prevail.

21. No Partnership: The OEB and the Recipient are independent operators and (i) nothing in this Agreement shall be construed as creating a partnership, joint venture, employment, or agency relationship between the Parties; (ii) neither Party has any authority whatsoever to enter into legally binding obligations on behalf of the other, and (iii) neither Party shall make any representation to the contrary.

22. Survival: Provisions, covenants, terms and conditions contained in this Agreement which, by their nature or terms, require their performance by the Parties after the expiration or termination of this Agreement shall continue in full force and effect following such expiry or termination, including sections 10, 12(e), 13, 16 and 17.

23. Conflict of Interest:

- (a) The Recipient must carry out its obligations and use the Contribution Payment Amount without any actual, or potential Conflict of Interest, where “**Conflict of Interest**” includes any situation or circumstance where, in relation to the

performance of its obligations under this Agreement, the Recipient's other commitments, relationships or financial interests: (i) could, or could be seen to, exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgment; or (ii) could, or could be seen to, compromise, impair or be incompatible with the effective performance of its obligations hereunder.

- (b) The Recipient will: (i) avoid any Conflict of Interest in the performance of its obligations under this Agreement; (ii) disclose to the OEB without delay any actual or potential Conflict of Interest that arises during the performance of this Agreement; and (iii) comply with any requirements prescribed by the OEB to resolve any Conflict of Interest. In addition to all other contractual rights or rights available at law or equity, the OEB may immediately terminate this Agreement upon giving notice to the Recipient if: (i) Recipient fails or has failed to disclose an actual or potential Conflict of Interest; (ii) Recipient fails to comply with any requirements prescribed by the OEB to resolve a Conflict of Interest; or (iii) a Conflict of Interest cannot be resolved.

24. Governing Law: This Agreement shall be governed by, and interpreted in accordance with, the laws of the Province of Ontario including the laws of Canada as applicable therein and each Party irrevocably and unconditionally submits to the non-exclusive jurisdiction of the courts of such province and all courts competent to hear appeals therefrom. The jurisdiction of any proceeding commenced by the Recipient will vest solely and exclusively in Ontario, and the Recipient will not file a proceeding in any other jurisdiction.

25. Notices: For all purposes of this Agreement, notice to a Party shall be delivered in writing or electronically to the addresses set out below. A notice shall be deemed to be received on the earlier of the time of actual receipt or two clear days (excluding Saturdays, Sundays, statutory holidays and civic holidays in the Province of Ontario) after the notice was sent. Addresses for notices to a Party are as follows:

For the OEB:	
Organization	Ontario Energy Board
Address	2300 Yonge Street, 27 th Floor Toronto, Ontario M4P 1E4
Attention	Lenore Robson
Telephone	(416) 440-8141, ext. 141
Email	Lenore.robson@oeb.ca

Copy to:	
Attention	Innovation Sandbox
Email	innovation@oeb.ca

For the Recipient:	
Organization	
Address	
Attention	
Telephone	
Email	

Copy to:	
Attention	
Telephone	
Email	

26. Effectiveness Date: The effective date of this Agreement shall be deemed to be the date of the last Party to sign this Agreement, as indicated by the date under such Party's signature.

Each Party signs this Agreement on the date stated beneath that Party's signature.

ONTARIO ENERGY BOARD

By:

Name:

Title:

Date:

[Insert Recipient's legal name]

By:

Name:

Title:

Date:

SCHEDULE A

Specific Project Requirements, etc.

Specific Project Requirements

For the purposes of section 3(a)(i) of this Agreement, the following are the specific requirements:

Insert specific project requirements]/if none insert “Not Applicable”

Financial Commitments (Non-OEB)

For the purposes of section 3(a)(ii) of this Agreement, the following commitments shall be obtained:

	Expected Total Contribution (over Project Duration)				Project Totals (\$ CDN)
	Cash (\$CDN)	Cash (% of total Project)	In-kind (\$ CDN)	In-kind (% of total Project)	
Challenge Contribution	[•]	[•]	[•]	[•]	[•]
Proponent contribution	[•]	[•]	[•]	[•]	[•]
Project Partners	[•]	[•]	[•]	[•]	[•]
Total	[•]	[•]	[•]	[•]	[•]

Project Milestones

Please provide details on all Project Milestones. Include additional rows as required. Milestone descriptions should be consistent with Schedule “C”.

Milestone Number	Reporting Milestone	Target Completion Date (d/m/y)	Contribution Amount

	Project Completion (Final Milestone)		
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Permitted Funding

For the purposes of section 5 of this Agreement, the following Duplicate Funding is permitted:

Section 5 – Duplicate Funding

[insert any permitted duplicate funding]/if none insert “Not Applicable”

Additional Reports

For the purposes of section 9(d) of this Agreement, the following reports are required:

Insert any additional reports [include timing of reports]/if none insert “Not Applicable”

SCHEDULE B

INVOICES AND ELIGIBLE EXPENSES

1. Invoices: The Recipient will submit invoices to the OEB as follows:

(a) The Recipient may submit standard company invoice forms.

(b) The following information must be reflected on each invoice:

(i) Invoice date;

(ii) Full Project name and number [to be provided];

(iii) Milestone number and description (e.g. 1 of 6, Pre-selection of ...) and the date of the corresponding Milestone Report (including both the date submitted to OEB and date approved by OEB);

(iv) Invoice amount in Canadian dollars;

(v) Total Contribution Amount invoiced to date (e.g. \$67,500/\$240,000);

(vi) Any applicable taxes (e.g. HST);

(vii) HST number

(viii) OEB Purchase Order Number (which will be provided by the OEB following the signing of the Agreement); and

(c) Invoices must be delivered [via email, mail or courier]

(d) Invoices are to be addressed as follows: Ontario Energy Board
2300 Yonge Street, 27th Floor

Toronto, Ontario M4P 1E4

Email :

Attention :

2. Eligible Expenses:

The OEB may reimburse the Recipient for Eligible Expenses but will not reimburse Ineligible Expenses. Eligible Expenses and Ineligible Expenses are categorized as follows:

Eligible Expenses

- ✓ Project-specific materials, equipment, products and services
- ✓ Salaries and benefits of employees directly involved in the design, selection, purchase and installation/completion of the project
- ✓ Professional, engineering, scientific, technical, management and contracting services, including training
- ✓ Permits and license fees
- ✓ Funding for marketing, communications and workshops directly related to the project activities
- ✓ Costs associated with the monitoring, verification and evaluation of the project's impact, including data collection, processing, analysis and management
- ✓ Equipment and products, including diagnostic and testing tools and instruments, and associated software
- ✓ Costs associated with providing approved incentives to project participants

Ineligible Expenses

- Budget deficits
- Activities completed or costs incurred before this agreement is entered into or after the project is completed
- Costs for any single consultant or contractor that has not been selected through a competitive process
- Costs associated with the purchase of real estate
- Any overhead costs generated by the lead applicant or third parties, such as operating costs related to general maintenance and repair
- Hospitality, incidental or food expenses for the project team
- Hospitality or travel costs not in compliance with the National Joint Council Rates
- Any costs not directly related to the achievement of the project's objectives as defined in this Agreement between the OEB and the Recipient

SCHEDULE C PROJECT PROPOSAL

Project Proposal follows